



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

*57th Legislature, 2nd Regular Session
Majority Research Staff*

HB 2426: state land department; disposition plan

KOLODIN FLOOR AMENDMENT

1. Specifies that the Conceptual Land Use Plan's authority applies to State Lands that have not been annexed as of the effective date of this act.

ADDITIONAL COW
KOLODIN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2426
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.
~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 37-331.03, Arizona Revised Statutes, is amended
3 to read:

4 37-331.03. Conceptual urban state trust land use plans; five
5 year state trust land disposition plans;
6 definitions

7 A. The commissioner shall create **AND APPROVE** conceptual land use
8 plans for all urban state trust land in this state and other state trust
9 lands the commissioner considers to be appropriate. The commissioner
10 shall:

11 1. Prioritize the creation of conceptual **LAND USE** plans to the
12 extent possible to:

13 (a) Correlate with the rate of population growth in the urban areas
14 in this state.

15 (b) Coincide with the production of municipal general plans under
16 title 9, chapter 4, article 6 and county plans under title 11, chapter 6,
17 article 1.

18 2. Revise and update each **CONCEPTUAL LAND USE** plan at least every
19 ten years. **THE COMMISSIONER SHALL ISSUE A WRITTEN ORDER APPROVING EACH**
20 **CONCEPTUAL LAND USE PLAN AND CONCEPTUAL LAND USE PLAN REVISION.**

21 3. Consult with the city, town or county in which the land is
22 located and with any regional planning organization regarding integrating
23 the conceptual **LAND USE** plan into the general land use plan of the city,
24 town or county.

1 4. ~~Submit~~ MAKE each CONCEPTUAL LAND USE plan, ~~and~~ revision of ~~the A~~
2 CONCEPTUAL LAND USE plan, ~~to the urban land planning oversight committee~~
3 ~~for review~~ AND THE COMMISSIONER'S WRITTEN APPROVAL OF EACH CONCEPTUAL LAND
4 USE PLAN OR CONCEPTUAL LAND USE PLAN REVISION AVAILABLE TO THE PUBLIC ON
5 THE DEPARTMENT'S WEBSITE.

6 B. On approval of the conceptual land use plan by the commissioner
7 under this section, the conceptual LAND USE plan is ~~considered to be~~ a
8 state general plan for THE purposes of this article.

9 C. The commissioner may create the conceptual land use plans under
10 subsection A of this section by any of the following methods:

11 1. Using department staff or private consultants.

12 2. Entering into participation contracts pursuant to section
13 37-239.

14 3. Issuing planning permits for urban lands pursuant to section
15 37-338.

16 4. Entering into planning contracts for urban lands or other state
17 trust lands the commissioner considers to be appropriate, including
18 compensation as provided by section 37-338, subsection D.

19 D. ON THE COMMISSIONER'S APPROVAL OF A CONCEPTUAL LAND USE PLAN,
20 THE CONCEPTUAL LAND USE PLAN[, AS APPLIED TO STATE LANDS THAT HAVE NOT
21 BEEN ANNEXED AS OF THE EFFECTIVE DATE OF THIS AMENDMENT TO THIS SECTION]:

22 1. IS THE CONTROLLING LAND USE DESIGNATION FOR STATE LANDS.

23 2. SUPERSEDES ANY CONFLICTING COUNTY OR MUNICIPAL ZONING.

24 ~~D.~~ E. The commissioner shall create A five year disposition
25 ~~plans~~ PLAN for all state trust land in EACH COUNTY IN this state, based at
26 a minimum on market demand, anticipated transportation and infrastructure
27 availability. The commissioner shall DO ALL OF THE FOLLOWING:

28 1. Review and update each FIVE YEAR DISPOSITION plan FOR EACH
29 COUNTY each year as ~~may be~~ necessary.

30 2. Consult with the city, town or county in which the land is
31 located and with any regional planning organization.

32 3. ~~Submit~~ MAKE each FIVE YEAR DISPOSITION plan, ~~and~~ EACH FIVE YEAR
33 DISPOSITION PLAN revision ~~to the urban land planning oversight committee~~
34 AND EACH WRITTEN ORDER THAT ADOPTS OR APPROVES A FIVE YEAR DISPOSITION
35 PLAN OR FIVE YEAR DISPOSITION PLAN REVISION AVAILABLE ON THE DEPARTMENT'S
36 WEBSITE to ensure conformity with the conceptual LAND USE plan under
37 subsection A OF THIS SECTION.

38 4. ENSURE THAT EACH FIVE YEAR DISPOSITION PLAN AND FIVE YEAR
39 DISPOSITION REVISION CONFORMS WITH THE CONCEPTUAL LAND USE PLAN.

40 5. ISSUE A WRITTEN ORDER THAT APPROVES AND ADOPTS EACH FIVE YEAR
41 DISPOSITION PLAN AND FIVE YEAR DISPOSITION REVISION.

42 ~~E.~~ F. For the purposes of this section:

43 1. "Conceptual land use plan" means a plan that is developed for
44 urban state trust land and other state trust lands the commissioner
45 considers to be appropriate and that identifies:

46 (a) Appropriate land uses, including commercial, industrial,
47 residential and open space uses.

1 (b) Transportation corridors and infrastructure requirements.

2 (c) All natural and artificial constraints and opportunities
3 associated with the land.

4 2. "Five year disposition plan" means a plan that identifies the
5 land projected to be sold, leased, reclassified for conservation purposes,
6 master planned or zoned during the next five years.

7 Sec. 2. Five year disposition plans; conceptual land use
8 plan; requirements; delayed repeal

9 A. Within two years of the effective date of this act, the state
10 land commissioner shall:

11 1. Complete the five year disposition plans for state trust lands
12 and update the conceptual land use plan for state lands pursuant to
13 section 37-331.03, subsection E, Arizona Revised Statutes, as amended by
14 this act.

15 2. Adopt written policies and procedures for updating:

16 (a) The five year disposition plan every five years.

17 (b) The conceptual land use plan every ten years.

18 3. Adopt written policies and procedures on how the state land
19 department will use the five year disposition plans and the conceptual
20 land use plan for determining whether state trust lands are or will be
21 sent to public auction.

22 4. Provide a copy of the five year disposition plans and the
23 conceptual land use plan and the policies and procedures adopted pursuant
24 to this section to the president of the senate and the speaker of the
25 house of representatives.

26 B. This section is repealed from and after June 30, 2029.

27 Sec. 3. Legislative findings

28 The legislature finds that:

29 1. According to the auditor general's performance audit and sunset
30 review of the state land department completed on July 9, 2025, the state
31 land department has failed to develop the statutorily required five year
32 disposition plans since 2016.

33 2. According to the auditor general's performance audit and sunset
34 review, all five members of the urban land planning oversight committee
35 have been vacant since at least 2018.

36 3. Pursuant to section 37-331.02, Arizona Revised Statutes, and
37 section 37-331.03, Arizona Revised Statutes, as amended by this act, the
38 urban land planning oversight committee serves in an advisory role only
39 and is not required for the commissioner to fulfill the commissioner's
40 obligations to create a five year disposition plan pursuant to statute.

41 4. The fact that the governor has not appointed any members to the
42 urban land planning oversight committee has not absolved the commissioner
43 of the commissioner's obligations to create a five year disposition plan
44 as prescribed in section 37-331.03, Arizona Revised Statutes, as amended
45 by this act.

1 5. The creation of a five year disposition plan is necessary for
2 housing affordability and to ensure the highest and best use of the land
3 for the beneficiaries of the trust.

4 Enroll and engross to conform

5 Amend title to conform

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